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Judge Considers Discovery Motion For Police, F.B.I. Files ATTORNEYS FOR HUEY NEWTON SEEK "SMOKING GUN" TO PROVE GOVERNMENT CONSPIRACY

(Oakland, Calif.) - Gesturing with a pointed finger at a red-faced assistant district attorney Thomas Orloff, attorney Sheldon Otis dramatically demanded last Monday afternoon that the prosecution turn over "the 'smoking gun' either in their files or that they have access to" that will prove the false charges and the federal government conspiracy against Black Panther Party Founder and President Huey P. Newton.

Yet, despite Otis's forceful arguments, Oakland-Piedmont Municipal Court Judge Courtland Arne refused to act immediately on the Black Panther Party leader's 157-page motion for discovery of files and documents from 17 local, state and federal law enforcement agencies. (See centerfold.)

Instead, Arne — who had previously denied a request that Huey be released on his own recognizance, reducing a \$100,000 bond to an \$80,000 "compromise ransom" — merely took the motion "under submission." He gave no



BPP President HUEY P. NEWTON talks with admiring Black youth. At a court hearing last Monday, attorneys for Huey demanded that the prosecution turn over files detailing the federal police conspiracy.

indication of when he would rule on the important legal brief.

At an informal press conference following the 45-minute hearing, Huey asserted his innocence of the false and slanderous charges against him.

"We can see that the prosecution will resist this [discovery motion] to the very end," Huey said.

"But we're confident that we will get this

information.

"In spite of the fact that I will not receive a fair trial — I have never received a fair trial — I still believe that I will be acquitted.

"I think the kind of bail and the kind of apparatus the state has is unfair when it's put against the individual, especially with charges as trumped up as these."

Asked by a reporter if the govern-
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Legislature Overrides Gov. Brown's Veto CALIFORNIA RESTORES DEATH PENALTY

(Sacramento, Calif.) - Opponents of capital punishment have already begun to marshal their forces for what promises to be a prolonged legal battle to overturn last week's reinstatement of the death penalty in California.

The new law, which went into effect at 5:22 p.m. on Thursday, August 11 — just two hours and 20 minutes after the state Assembly voted 54-26 to override Governor Edmund G. Brown, Jr.'s veto — prescribes death in San Quentin Prison's gas chamber for treason and 15 kinds of murder.

Just as the state Senate's 27-12 vote in June to override Brown's veto passed by the required two-thirds majority, so did the Assembly vote squeak by.

The deciding vote was cast by Assemblyman Frank Vicencia, a Democrat from Bellflower in southeast Los Angeles County. Although personally opposed to capital punishment, Vicencia said he voted for the "sentiments" of his district.

The California Supreme Court and the U.S. Supreme Court are likely to review the Constitutionality of the new state death penalty, described by one opponent in the Assembly as reflecting a "certain vengeful state of mind that encourages violence and cheapens respect for life."

Interviewed in Los Angeles, Governor Brown, who this past May vetoed the death penalty bill authored by state Senator George Deukmejian of Long Beach, said of the Assembly vote, "I'm not surprised. I don't believe in the death penalty... but the



San Quentin gas chamber. The death penalty was declared un-Constitutional in 1976 by the California Supreme Court but was reinstated last week by the state legislature.

legislature has spoken and now it's up to the courts."

In his "State of the State" message before
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